

Radhey Shyam v. State of U.P. — s.135 compounding receipts to trial court after charge-sheet

High Court of Judicature at Allahabad · Single Judge · 25 August 2021 · Application u/s 482 No. 12485 of 2021 · Application u/s 482 No. 12485 of 2021 · **482 disposed; applicant to place compounding receipts before trial court; no coercive action for 15 days.**

HEADNOTE

On a s.482 application to quash a s.135 Electricity Act prosecution after deposit of summoning and compounding fees, the High Court did not quash. Because a charge-sheet was already before the trial court, the accused was directed to place the receipts and facts there for decision within a week, with coercive action stayed for fifteen days.

FACTUAL SUMMARY

Radhey Shyam sought quashing of the 26 September 2019 summoning order and Criminal Case No. 105 of 2019 (Crime No. 402 of 2019) under section 135 of the Electricity Act, 2003, pending at Chandauli. He had deposited Rs 5,000 as summon fee and Rs 33,766 as compounding fee. The Executive Engineer wrote to the Mughalsarai police on 27 August 2019 that the FIR might be dropped under section 152 and the U.P. Electricity Supply Code. A charge-sheet had already been filed.

HOLDING-UNITS

HOLDING-UNIT · EA2003::152

compounding of s.135 offence after charge-sheet

HOLDING

Once a charge-sheet in a section 135 prosecution is before the trial court, deposit of summoning and compounding fees under section 152 of the Electricity Act, 2003 and the U.P. Electricity Supply Code, even with an Executive Engineer letter asking that the FIR be dropped, is not a ground for the High Court to quash the proceedings under section 482 CrPC; the accused must place the receipts and facts before the trial court, which is to decide the grievance, and coercive action is stayed only for a short period. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

The applicant relied on s.152 compounding deposits and an Executive Engineer letter that the s.135 FIR might be quashed; the Court treated compounding as a matter for the trial court after charge-sheet, not as a ground to quash in s.482. ¶ 1

section-482-sparingly-at-pre-trial-stage

The Court disposed of the s.482 application without quashing the s.135 case and required the accused to raise the compounding facts before the court where the charge-sheet was pending. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE S.135 PROSECUTION STOOD COMPOUNDED UNDER S.152 SO AS TO WARRANT QUASHING OF THE FIR AND SUMMONING ORDER

Left to the trial court on production of deposit receipts. ¶ 1